

carved escheats to the lord, he may redeem (*b*), and if the lord may take a benefit through the tenant, it seems to follow that he must sustain an onus. Indeed, an opinion to that effect has been enunciated by Lord Justice James when Vice-Chancellor (*c*), and also by an equity court in Ireland (*d*). Now that the Acts, 13 & 14 Vict. c. 60, [and 44 & 45 Vict. c. 41,] (to be noticed presently), have been passed, it is unlikely that the point will ever call for a decision.

8. **Copyholds.**—In *copyholds* there is, properly speaking, no such thing as escheat. The freehold and inheritance are vested in the lord of the manor, and the tenant has no claim but according to the entry on the court roll. If the tenant be a trustee, and no trust appears on the roll, there can be no pretence for charging the lord with an equity to which he never assented (*e*); but if a surrender be made upon a trust either *expressed* or *referred to* on the roll, the lord is stopped by this evidence of his will, and cannot afterwards claim in contradiction to his grant (*f*).

9. **Customary freeholds.**—*Customary freeholds* held not at the will of the lord, but according to the custom of the manor, stand on the same footing as copyholds in reference to escheat (*g*), for it is now established that customary freeholds are in fact copyholds, but of a privileged character (*h*).

10. **Equity of redemption.**—A distinction was taken by Lord Hale between a *trust* and an *equity of redemption*. “A trust,” said his Lordship, “is created by the contract of the party, and he may direct it as he pleaseth, and he may provide for the execution of it, and therefore one that comes in in the *post* shall not be liable to it without express mention

(*b*) Viscount Downe v. Morris, 3 Hare, 394.

(*c*) *Re Martinez' Trust*, 22 L. T. N. S. 403.

(*d*) *White v. Baylor*, 10 I. R. Eq. Rep. 54; and see *Evans v. Brown*, 5 Beav. 116.

(*e*) *Attorney-General v. Duke of Leeds*, 2 M. & K. 343; and see *Peachy v. Duke of Somerset*, 1 Str. 454; *Burgess v. Wheate*, 1 Eden, 231.

(*f*) *Burgess v. Wheate*, 1 Eden, 231, *per* Lord Mansfield; *Weaver v. Maule*, 2 R. & M. 97; and see *Everingham v. Ivatt*, 7 L. R. Q. B. 683; affirmed 8 L. R. Q. B. 388; [*Gallard v. Hawkins*, 27 Ch. D. 298.]

(*g*) *Weaver v. Maule*, 2 R. & M. 100, *per* Sir John Leach.

(*h*) *Duke of Portland v. Hill*, 12 Jur. N. S. 286.